

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

1 53

2. CONTRACT NUMBER

3. SOLICITATION NUMBER

FA863025RB007

4. TYPE OF SOLICITATION

☐ SEALED BID (IFB) INVITATION FOR BID☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL

5. DATE ISSUED

6. REQUISITION/PURCHASE NUMBER

7. ISSUED BY

CODE FA8630

FA8630 AFLCMC WFK
CP 937 656 3518, 5454 BUCKNER BLDG 209
WRIGHT PATTERSON AFB, OH 45433-5337
UNITED STATES
STEPHEN WELLS, Email: stephen.wells.2@us.af.mil Telephone: 937-713-9408

8. ADDRESS OFFER TO (If other than item 7)

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 05:00 PM local time 31 Dec 2025
(Hour) (Date)**CAUTION** - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME	B. TELEPHONE (NO COLLECT CALLS)			C. EMAIL ADDRESS
	STEPHEN WELLS	AREA CODE	NUMBER	EXTENSION	stephen.wells.2@us.af.mil
		937	713-9408		

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES			
X	A	SOLICITATION/CONTRACT FORM	1-2	X	I	CONTRACT CLAUSES	25-39
X	B	SUPPLIES OR SERVICES AND PRICES/COSTS	3-20	PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS			
X	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT	21	X	J	LIST OF ATTACHMENTS	40
X	D	PACKAGING AND MARKING	22	PART IV - REPRESENTATIONS AND INSTRUCTIONS			
X	E	INSPECTION AND ACCEPTANCE	22	X	K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	41-51
X	F	DELIVERIES OR PERFORMANCE	23				
X	G	CONTRACT ADMINISTRATION DATA	23-24	X	L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	52
X	H	SPECIAL CONTRACT REQUIREMENTS	25	X	M	EVALUATION FACTORS FOR AWARD	53

OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different

period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER	15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE
AREA CODE	NUMBER	EXTENSION		

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

Parts, Repair, and Ordering System (PROS) 7

NAICS: 541614
Size Standard: USD 20,000,000.00 Annual receipts

Product Service Code: R499

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

Item	Supplies / Services	Estimated Quantity	Unit	Unit Price	Amount
0001	FILL FEE Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
0001AA	FILL FEE FOR SUPPLY Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
0001AB	FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
0002	CANCELLATION FEE Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
0002AA	CANCELLATION FEE FOR SUPPLY Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
0002AB	CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
0003	RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				

0004	TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
0005	TASK ORDERS Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
0006	DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
0007	OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 1001	Option Period 1 OPTION YEAR 1 FILL FEE Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
	Option Period 1 OPTION YEAR 1 FILL FEE FOR SUPPLY				

Option Line Item 1001AA	Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1001AB	Option Period 1 OPTION YEAR 1 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1002	Option Period 1 OPTION YEAR 1 CANCELLATION FEE Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 1002AA	Option Period 1 OPTION YEAR 1 CANCELLATION FEE FOR SUPPLY Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1002AB	Option Period 1 OPTION YEAR 1 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 1003	Option Period 1 OPTION YEAR 1 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 1004	Option Period 1 OPTION YEAR 1 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
	Option Period 1 OPTION YEAR 1 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item 1005	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 1006	Option Period 1 OPTION YEAR 1 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 1007	Option Period 1 OPTION YEAR 1 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 2001	Option Period 2 OPTION YEAR 2 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 2001AA	Option Period 2 OPTION YEAR 2 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 2001AB	Option Period 2 OPTION YEAR 2 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Option Period 2 OPTION YEAR 2 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				

Option Line Item 2002	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 2002AA	Option Period 2 OPTION YEAR 2 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 2002AB	Option Period 2 OPTION YEAR 2 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 2003	Option Period 2 OPTION YEAR 2 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 2004	Option Period 2 OPTION YEAR 2 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 2005	Option Period 2 OPTION YEAR 2 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
	Option Period 2 OPTION YEAR 2 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	

Option Line Item 2006	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 2007	Option Period 2 OPTION YEAR 3 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 3001	Option Period 3 OPTION YEAR 3 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 3001AA	Option Period 3 OPTION YEAR 3 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 3001AB	Option Period 3 OPTION YEAR 3 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 3002	Option Period 3 OPTION YEAR 3 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 3002AA	Option Period 3 OPTION YEAR 3 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item 3002AB	Option Period 3 OPTION YEAR 3 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 3003	Option Period 3 OPTION YEAR 3 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 3004	Option Period 3 OPTION YEAR 3 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 3005	Option Period 3 OPTION YEAR 3 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 3006	Option Period 3 OPTION YEAR 3 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
	Option Period 3 OPTION YEAR 4 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item 3007	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 4001	Option Period 4 OPTION YEAR 4 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 4001AA	Option Period 4 OPTION YEAR 4 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4001AB	Option Period 4 OPTION YEAR 4 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4002	Option Period 4 OPTION YEAR 4 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 4002AA	Option Period 4 OPTION YEAR 4 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4002AB	Option Period 4 OPTION YEAR 4 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 4003	Option Period 4 OPTION YEAR 4 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data:				

	The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 4004	Option Period 4 OPTION YEAR 4 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 4005	Option Period 4 OPTION YEAR 4 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 4006	Option Period 4 OPTION YEAR 4 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 4007	Option Period 4 OPTION YEAR 5 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
	Option Period 5 OPTION YEAR 5 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data:				

Option Line Item 5001	The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 5001AA	Option Period 5 OPTION YEAR 5 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 5001AB	Option Period 5 OPTION YEAR 5 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 5002	Option Period 5 OPTION YEAR 5 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 5002AA	Option Period 5 OPTION YEAR 5 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 5002AB	Option Period 5 OPTION YEAR 5 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 5003	Option Period 5 OPTION YEAR 5 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 5004	Option Period 5 OPTION YEAR 5 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data:				

	The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 5005	Option Period 5 OPTION YEAR 5 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 5006	Option Period 5 OPTION YEAR 5 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 5007	Option Period 5 OPTION YEAR 6 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 6001	Option Period 6 OPTION YEAR 6 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 6001AA	Option Period 6 OPTION YEAR 6 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item 6001AB	Option Period 6 OPTION YEAR 6 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 6002	Option Period 6 OPTION YEAR 6 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 6002AA	Option Period 6 OPTION YEAR 6 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 6002AB	Option Period 6 OPTION YEAR 6 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 6003	Option Period 6 OPTION YEAR 6 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 6004	Option Period 6 OPTION YEAR 6 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 6005	Option Period 6 OPTION YEAR 6 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data:				

	Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 6006	Option Period 6 OPTION YEAR 6 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 6007	Option Period 6 OPTION YEAR 7 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 7001	Option Period 7 OPTION YEAR 7 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 7001AA	Option Period 7 OPTION YEAR 7 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 7001AB	Option Period 7 OPTION YEAR 7 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Option Period 7 OPTION YEAR 7 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				

Option Line Item 7002	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 7002AA	Option Period 7 OPTION YEAR 7 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 7002AB	Option Period 7 OPTION YEAR 7 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 7003	Option Period 7 OPTION YEAR 7 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 7004	Option Period 7 OPTION YEAR 7 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 7005	Option Period 7 OPTION YEAR 7 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
	Option Period 7 OPTION YEAR 7 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	

Option Line Item 7006	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 7007	Option Period 7 OPTION YEAR 8 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 8001	Option Period 8 OPTION YEAR 8 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 8001AA	Option Period 8 OPTION YEAR 8 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 8001AB	Option Period 8 OPTION YEAR 8 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 8002	Option Period 8 OPTION YEAR 8 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 8002AA	Option Period 8 OPTION YEAR 8 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		

Option Line Item 8002AB	Option Period 8 OPTION YEAR 8 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 8003	Option Period 8 OPTION YEAR 8 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 8004	Option Period 8 OPTION YEAR 8 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 8005	Option Period 8 OPTION YEAR 8 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 8006	Option Period 8 OPTION YEAR 8 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 8007	Option Period 8 OPTION YEAR 9 FILL FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data:				

	The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				
Option Line Item 9001	Option Period 9 OPTION YEAR 9 FILL FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's fill fees for supply requisitions and maintenance requisitions as detailed in Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees shall be paid in accordance with Section J, Attachment 5, Pricing Matrix and are subject to the adjustments set forth in the FAR 52.246-20, Warrant of Services (May 2001) clause of this contract. Fill fees shall encompass the total overall cost to perform on this contract in accordance with the PWS. The fill fees will include but not be limited to all prime contractor costs for labor, fringe benefits, overhead, general and administrative, subcontractor management, transition phase-in costs, mandatory travel, and date. The fill fees will also include all prime associated packaging, crating, handling, transportation, and storage costs other than those specifically identified in CLIN 0006.				
Option Line Item 9001AA	Option Period 9 OPTION YEAR 9 FILL FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 9001AB	Option Period 9 OPTION YEAR 9 CANCELLATION FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 9002	Option Period 9 OPTION YEAR 9 CANCELLATION FEE FOR SUPPLY Product Service Code: R499				
	Additional Descriptive Data: The contractor's cancellation fee will be paid for a customer cancellation of a supply or maintenance requisition after a price quote has been obtained by the contractor in accordance with Section J, Attachment 1, Performance Work Statement (PWS). Cancellation fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 9002AA	Option Period 9 OPTION YEAR 9 CANCELLATION FEE FOR MAINTENANCE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 9002AB	Option Period 9 OPTION YEAR 9 RESEARCH FEE Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
Option Line Item 9003	Option Period 9 OPTION YEAR 9 TRAVEL REIMBURSEMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data:				

	The contractor shall provide maintenance research for numbered parts or National Stock Number (NSN) requisitions identified to a standard NSN and passed to a Department of Defense (DoD) source for support in accordance with Section J, Attachment 1, Performance Statement of Work (PWS). Fill fees will be paid in accordance with Section J, Attachment 5, Pricing Matrix.				
Option Line Item 9004	Option Period 9 OPTION YEAR 9 TASK ORDERS Product Service Code: R499 Pricing Arrangement: Cost No Fee	1	Each		
	Additional Descriptive Data: The contractor and their subcontractors shall be reimbursed for incurred travel and travel related expenses in accordance with the Joint Travel Regulations (JTR) only when travel is directed and approved by the PROS Program Manager.				
Option Line Item 9005	Option Period 9 OPTION YEAR 9 DATA, NOT SEPARATELY PRICED Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: Task orders will be issued for requirements of a technical nature, including studies, analysis, training, and other support as necessary for efforts associated with non-standard or difficult to support standard items procured or maintained through the PROS contract. Costs associated with these task orders shall include proposal preparation, travel, and travel related costs in accordance with the Joint Travel Regulations (JTR).				
Option Line Item 9006	Option Period 9 OPTION YEAR 9 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each	Not Separately Priced	
	Additional Descriptive Data: The contractor shall deliver data in accordance with Section J, Attachment 1, Performance Work Statement (PWS), and Attachment 2, Contract Data Requirements List (CDRL). Data CLINs are NOT SEPARATELY PRICED.				
Option Line Item 9007	Option Period 9 OPTION YEAR 1 OBJECTIVE PERFORMANCE INCENTIVE PAYMENT Product Service Code: R499 Pricing Arrangement: Firm Fixed Price	1	Each		
	Additional Descriptive Data: The contractor shall be paid an Objective Performance Incentive (OPI) at the conclusion of each timeframe listed in the OPI Matrix and in accordance with the AFLCMC/WF H101 clause of this contract.				

Section C - Description/Specifications/Statement of Work

Requirements

The Air Force Security Assistance and Cooperation (AFSAC) Directorate located at Wright-Patterson Air Force Base, OH manages the Parts and Repair Ordering System (PROS) contract that provides Commercial Buying Services (CBS) for Non-Standard and Difficult to Support Standard Items. The AFSAC PROS contract is a performance-based service acquisition providing supply, maintenance, and Task Order support services. This tri-service capable contract will support Air Force, Navy, and Army Foreign Military Sales (FMS) customers.

See Section J, Attachment 1, Performance Work Statement (PWS) for full program requirements.

Section D - Packaging and Marking

Section E - Inspection and Acceptance

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
52.246-4	Inspection of Services-Fixed-Price.	Aug 1996		
52.246-15	Certificate of Conformance.	Apr 1984		

Section F - Deliveries or Performance

Section G - Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.231-7000	Supplemental Cost Principles	Dec 1991		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

- (1) *Document type.* The Contractor shall submit payment requests using the following document type(s):
 - (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
 - (ii) For fixed price line items-
 - (A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

N/A

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

N/A

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
 - (iv) For performance based payments, submit a performance based payment request.
 - (v) For commercial financing, submit a commercial financing request.
- (2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	<u>F4FTBS</u>
Issue By DoDAAC	<u>FA8630</u>
Admin DoDAAC	<u>FA8630</u>
Inspect By DoDAAC	<u>F4FTBS</u>
Ship To Code	<u>F4FTBS</u>
Ship From Code	<u>TBD</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>FA8630</u>
Service Acceptor (DoDAAC)	<u>F4FTBS</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	<u>N/A</u>
Other DoDAAC(s)	<u>N/A</u>

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

See Block 5 of SF 26

(Contracting Officer: Insert applicable information or "Not applicable.")

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Section H - Special Contract Requirements

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-16	Preventing Personal Conflicts of Interest.	Jun 2020		
52.204-13	System for Award Management Maintenance.	Oct 2018		
52.204-18	Commercial and Government Entity Code Maintenance.	Aug 2020		
52.204-19	Incorporation by Reference of Representations and Certifications.	Dec 2014		
52.204-21	Basic Safeguarding of Covered Contractor Information Systems.	Nov 2021		
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations.	Nov 2015		
52.212-4	Contract Terms and Conditions-Commercial Products and Commercial Services.	Nov 2023		
52.227-1	Authorization and Consent.	Jun 2020		
52.227-2	Notice and Assistance Regarding Patent and Copyright Infringement.	Jun 2020		
52.229-6	Taxes-Foreign Fixed-Price Contracts.	Feb 2013		
52.240-1	Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities.	Nov 2024		
52.245-1	Government Property.	Sep 2021		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7020	NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.217-7000	Exercise of Option to Fulfill Foreign Military Sales Commitments. (Alternate I)	Nov 2014	Alternate I	Nov 2014
252.219-7003	Small Business Subcontracting Plan (DoD Contracts).	Dec 2019		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7028	Exclusionary Policies and Practices of Foreign Governments.	Apr 2003		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7013	Rights in Technical Data-Other Than Commercial Products and Commercial Services.	Jan 2025		
252.227-7014	Rights in Other Than Commercial Computer Software and Other Than Commercial Technical Data-Commercial Products and Commercial Services.	Jan 2025		
252.227-7015	Technical Data-Commercial Products and Commercial Services. (Alternate I)	Jan 2025	Alternate I	Jan 2025
252.227-7025	Limitations on the Use or Disclosure of Government-Furnished	Jan 2025		
252.227-7026	Deferred Delivery of Technical Data or Computer Software.	Apr 1988		
252.227-7027	Deferred Ordering of Technical Data or Computer Software.	Apr 1988		
252.227-7030	Technical Data-Withholding of Payment.	Mar 2000		
252.227-7037	Validation of Asserted Restrictions on Technical Data.	Jan 2025		
252.229-7011	Reporting of Foreign Taxes - U.S. Assistance Programs.	Sep 2005		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.242-7006	Accounting System Administration.	Jan 2025		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7000	Subcontracts for Commercial Products or Commercial Services.	Nov 2023		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		

FAR Clauses Incorporated by Full Text

52.212-5	Contract Terms and Conditions Required to Implement Statutes or Executive Orders - Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	(Jan 2025)	Deviation 2025-O0004	(Mar 2025)
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CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS-COMMERCIAL PRODUCTS AND
COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).

(3) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with *Alternate I* (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☒ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509)).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community-see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved].

☐ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders-Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☐ (11)

(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

☒ (12) 52.209-6, Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (JAN 2025) (31 U.S.C. 6101 note).

☐ (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

☐ (14) [Reserved].

☐ (15) 52.219-3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

☐ (16) 52.219-4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

☐ (17) [Reserved]

☐ (18)

(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-6.

☐ (19)

(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

☐ (ii) Alternate I (MAR 2020) of 52.219-7.

☒ (20) 52.219-8, Utilization of Small Business Concerns (JAN 2025)(15 U.S.C. 637(d)(2) and (3)).

☒ (21)

(i) 52.219-9, Small Business Subcontracting Plan (JAN 2025) (15 U.S.C. 637(d)(4)).

☐ (ii) Alternate I (NOV 2016) of 52.219-9.

☒ (iii) Alternate II (NOV 2016) of 52.219-9.

☐ (iv) Alternate III (JUN 2020) of 52.219-9.

☐ (v) Alternate IV (JAN 2025) of 52.219-9.

☐ (22)

(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

☐ (ii) Alternate I (MAR 2020) of 52.219-13.

☐ (23) 52.219-14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

☐ (24) 52.219-16, Liquidated Damages-Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

☐ (25) 52.219-27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26)

(i) 52.219-28, Postaward Small Business Program Rerepresentation (JAN 2025) (15 U.S.C. 632(a)(2)).

☒ (ii) Alternate I (MAR 2020) of 52.219-28.

☐ (27) 52.219-29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219-30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219-33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 637(a)(17)).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O.11755).

☒ (32) 52.222-19, Child Labor-Cooperation with Authorities and Remedies (JAN 2025)(E.O. 13126).

☐ (33) [Reserved]

☐ (34) [Reserved]

☒ (35)

(i) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)

(i) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

- ☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).
- ☒ (39)
- (i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- ☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- ☒ (40) 52.222-54, Employment Eligibility Verification (JAN 2025) (Executive Order 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)
- ☐ (41)
- (i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008) (42 U.S.C. 6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)
- ☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (44) 52.223-20, Aerosols (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (45) 52.223-21, Foams (MAY 2024) (42 U.S.C. 7671, *et seq.*).
- ☐ (46) 52.223-23, Sustainable Products and Services (MAR 2025) (DEVIATION 2025-O0004)) (7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671l).
- ☐ (47)
- (i) 52.224-3 Privacy Training (JAN 2017) (5 U.S.C. 552 a).
- ☐ (ii) Alternate I (JAN 2017) of 52.224-3.
- ☐ (48)
- (i) 52.225-1, Buy American-Supplies (OCT 2022) (41 U.S.C. chapter 83).
- ☐ (ii) Alternate I (OCT 2022) of 52.225-1.
- ☐ (49)
- (i) 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43.
- ☐ (ii) Alternate I [Reserved].
- ☐ (iii) Alternate II (JAN 2025) of 52.225-3.
- ☐ (iv) Alternate III (FEB 2024) of 52.225-3.
- ☐ (v) Alternate IV (Oct 2022) of 52.225-3.
- ☐ (50) 52.225-5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note).
- ☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).
- ☐ (52) 52.225-26, Contractors Performing Private Security Functions Outside the United States (Oct 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- ☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (Nov 2007) (42 U.S.C. 5150).
- ☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).
- ☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513).
- ☒ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).
- ☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

- ☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).
- ☒ (59) 52.232-33, Payment by Electronic Funds Transfer-System for Award Management (OCT2018) (31 U.S.C. 3332).
- ☐ (60) 52.232-34, Payment by Electronic Funds Transfer-Other than System for Award Management (Jul 2013) (31 U.S.C. 3332).
- ☒ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).
- ☒ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).
- ☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- ☒ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017) (15 U.S.C. 637(d)(13)).
- ☒ (65)
- (i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).
- ☐ (ii) Alternate I (APR 2003) of 52.247-64.
- ☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

[Contracting Officer check as appropriate.]

- ☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- ☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☒ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).
- ☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- ☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- ☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- ☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- ☒ (9) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (Jun 2020) (42 U.S.C. 1792).
- ☐ (10) 52.247-69, Reporting Requirement for U.S.-Flag Air Carriers Regarding Training to Prevent Human Trafficking (JAN 2025) (49 U.S.C. 40118(g)).

(d) *Comptroller General Examination of Record.* The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records-Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e) (1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1), in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause-

- (i) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).
- (ii) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

- (iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).
- (iv) 52.204-23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115-91).
- (v) 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115-232).
- (vi) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).
- (vii) (A) 52.204-30, Federal Acquisition Supply Chain Security Act Orders-Prohibition. (DEC 2023) (Pub. L. 115-390, title II).
- (B) Alternate I (DEC 2023) of 52.204-30.
- (viii) 52.219-8, Utilization of Small Business Concerns (JAN 2025) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.
- (ix) [Reserved]
- (x) [Reserved]
- (xi) 52.222-35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).
- (xii) 52.222-36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).
- (xiii) 52.222-37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).
- (xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.
- (xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).
- (xvi) (A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).
- (B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).
- (xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014) (41 U.S.C. chapter 67).
- (xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (MAY 2014) (41 U.S.C. chapter 67).
- (xix) 52.222-54, Employment Eligibility Verification (JAN 2025) (E.O. 12989).
- (xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).
- (xxi) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).
- (xxii) (A) 52.224-3, Privacy Training (Jan 2017) (5 U.S.C. 552a).
- (B) Alternate I (JAN 2017) of 52.224-3.
- (xxiii) 52.225-26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).
- (xxiv) 52.226-6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.
- (xxv) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (Mar 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232-40.
- (xxvi) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act-Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).
- (xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of clause)

52.216-7 Allowable Cost and Payment.

(Aug 2018)

ALLOWABLE COST AND PAYMENT (AUG 2018)

(a) Invoicing. (1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the 30th [Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs. (1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates. (1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2) (i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information.* Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p). Additional salary reference information is available at <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedBeforeJune24.pdf> and <https://www.whitehouse.gov/wp-content/uploads/2017/11/ContractorCompensationCapContractsAwardedafterJune24.pdf>.

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6) (i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment. (1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.216-18 Ordering.

(Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from TBD through TBD.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations.

(Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order.* When the Government requires supplies or services covered by this contract in an amount of less than TBD (Price of Initial Task Order), the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order.* The Contractor is not obligated to honor-

(1) Any order for a single item in excess of \$50,000,000;

(2) Any order for a combination of items in excess of \$50,000,000; or

(3) A series of orders from the same ordering office within 5 business days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within 2 business days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

(End of clause)

52.216-22 Indefinite Quantity.

(Oct 1995)

Indefinite Quantity (Oct 1995)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the effective period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order to the same extent as if the order were completed during the contract's effective period; *provided*, that the Contractor shall not be required to make any deliveries under this contract after TBD.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 60 calendar days [insert the period of time within which the Contracting Officer may exercise the option].

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 calendar days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 calendar days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 10 years.

(End of clause)

52.246-20 Warranty of Services.

(May 2001)

Warranty of Services (May 2001)

(a) *Definition.* "Acceptance," as used in this clause, means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing and identified supplies, or approves specific services, as partial or complete performance of the contract.

(b) Notwithstanding inspection and acceptance by the Government or any provision concerning the conclusiveness thereof, the Contractor warrants that all services performed under this contract will, at the time of acceptance, be free from defects in workmanship and conform to the requirements of this contract. The Contracting Officer shall give written notice of any defect or nonconformance to the Contractor within 30 days from the date of acceptance by the customer. This notice shall state either-

(1) That the Contractor shall correct or reperform any defective or nonconforming services; or

(2) That the Government does not require correction or reperformance.

(c) If the Contractor is required to correct or reperform, it shall be at no cost to the Government, and any services corrected or reperfomed by the Contractor shall be subject to this clause to the same extent as work initially performed. If the Contractor fails or refuses to correct or reperform, the Contracting Officer may, by contract or otherwise, correct or replace with similar services and charge to the Contractor the cost occasioned to the Government thereby, or make an equitable adjustment in the contract price.

(d) If the Government does not require correction or reperformance, the Contracting Officer shall make an equitable adjustment in the contract price.

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

_____[Insert one or more Internet addresses]

(End of clause)

DFARS Clauses Incorporated by Full Text

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

(1) For fixed-price type line, subline, or exhibit line items, the unit price identified in the contract at the time of delivery;

(2) For cost-type or undefinitized line, subline, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and

(3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subline, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

_____	_____
_____	_____
_____	_____

(ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number Item Description

_____	_____
_____	_____
_____	_____

(If items are identified in the Schedule, insert "See Schedule in this table.")

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

(v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

(4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

(5) *Unique item identifier.*

(i) The Contractor shall-

(A) Determine whether to-

- (1) Serialize within the enterprise identifier;
- (2) Serialize within the part, lot, or batch number; or
- (3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

(ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.
- (2) Unique item identifier type.
- (3) Issuing agency code (if concatenated unique item identifier is used).
- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.

(3) Unique item identifier type.**

(4) Issuing agency code (if concatenated unique item identifier is used).**

(5) Enterprise identifier (if concatenated unique item identifier is used).**

(6) Original part number (if there is serialization within the original part number).**

(7) Lot or batch number (if there is serialization within the lot or batch number).**

(8) Current part number (optional and only if not the same as the original part number).**

(9) Current part number effective date (optional and only if current part number is used).**

(10) Serial number (if concatenated unique item identifier is used).**

(11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

(i) Use of the embedded items capability in WAWF;

(ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or

(iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts*. If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.225-7027 Restriction on Contingent Fees for Foreign Military Sales.

(Apr 2003)

RESTRICTION ON CONTINGENT FEES FOR FOREIGN MILITARY SALES

(APR 2003)

(a) Except as provided in paragraph (b) of this clause, contingent fees, as defined in the Covenant Against Contingent Fees clause of this contract, are generally an allowable cost, provided the fees are paid to-

(1) A bona fide employee of the Contractor; or

(2) A bona fide established commercial or selling agency maintained by the Contractor for the purpose of securing business.

(b) For foreign military sales, unless the contingent fees have been identified and payment approved in writing by the foreign customer before contract award, the following contingent fees are unallowable under this contract:

(1) For sales to the Government(s) of N/A, contingent fees in any amount.

(2) For sales to Governments not listed in paragraph (b)(1) of this clause, contingent fees exceeding \$50,000 per foreign military sale case.

(End of clause)

Supplemental Clauses Incorporated by Full Text

5352.201-9101 AFLCMC/AQ-AZ Ombudsman

(Jul 2023)

(a) An ombudsman has been appointed to hear and facilitate the resolution of concerns from offerors, potential offerors, and others for this acquisition. When requested, the ombudsman will maintain strict confidentiality as to the source of the concern. The existence of the ombudsman does not affect the authority of the program manager, contracting officer, or source selection official. Further, the ombudsman does not participate in the evaluation of proposals, the source selection process, or the adjudication of protests or formal contract disputes. The ombudsman may refer the interested party to another official who can resolve the concern.

(b) Before consulting with an ombudsman, interested parties must first address their concerns, issues, disagreements, and/or recommendations to the contracting officer for resolution. Consulting an ombudsman does not alter or postpone the timelines for any other processes (e.g., agency level bid protests, GAO bid protests, requests for debriefings, employee-employer actions, contests of OMB Circular A-76 competition performance decisions).

(c) If resolution cannot be made by the contracting officer, the interested party may contact the ombudsman, Col(S) Paul W. Tinker, Deputy Director, Acquisition Excellence & Program Execution Directorate, AFLCMC/AQ-AZ, ASCA@us.af.mil. Concerns, issues, disagreements, and recommendations that cannot be resolved at the Center/MAJCOM/DRU/SMC ombudsman level, may be brought by the interested party for further consideration to the Air Force ombudsman, Associate Deputy Assistant Secretary (ADAS) (Contracting), SAF/AQC, 1060 Air Force Pentagon, Washington DC 20330-1060, phone number (571) 256-2395, facsimile number (571) 256-2431.

(d) The ombudsman has no authority to render a decision that binds the agency.

(e) Do not contact the ombudsman to request copies of the solicitation, verify offer due date, or clarify technical requirements. Such inquiries shall be directed to the contracting officer.

(End of clause)

5352.209-9000 Organizational Conflict of Interest (Alternate VI)

(Jul 2023)

Alternate VI

(Jul 2023)

(a) The following restrictions and definitions apply to prevent conflicting roles which may bias the Contractor's judgment or objectivity, or to preclude the Contractor from obtaining an unfair competitive advantage in concurrent or future acquisitions.

(1) Descriptions or definitions:

""Contractor"" means the business entity receiving the award of this contract, its parents, affiliates, divisions and subsidiaries.

""Development"" means all efforts towards solution of broadly-defined problems. This may encompass research, evaluating technical feasibility, proof of design and test, or engineering of programs not yet approved for acquisition or operation.

""Proprietary Information"" means all information designated as proprietary in accordance with law and regulation, and held in confidence or disclosed under restriction to prevent uncontrolled distribution. Examples include limited or restricted data, trade secrets, sensitive financial information, and computer software; and may appear in cost and pricing data or involve classified information.

""System"" means the system that is the subject of this contract.

""System Life"" means all phases of the system's development, production, or support.

""Systems Engineering"" means preparing specifications, identifying and resolving interface problems, developing test requirements, evaluating test data, and supervising design.

""Technical Direction"" means developing work statements, determining parameters, directing other Contractors' operations, or resolving technical controversies.

(2) Restrictions: The Contractor shall perform systems engineering and/or technical direction, but will not have overall contractual responsibility for the system's development, integration, assembly and checkout, or production. The parties recognize that the Contractor shall occupy a highly influential and responsible position in determining the system's basic concepts and supervising their execution by other Contractors. The Contractor's judgment and recommendations must be objective, impartial, and independent. To avoid the prospect of the Contractor's judgment or recommendations being influenced by its own products or capabilities, it is agreed that the Contractor is precluded for the life of the system from award of a DoD contract to supply the system or any of its major components, and from acting as a subcontractor or consultant to a DoD supplier for the system or any of its major components.

(b) The above restrictions shall be included in all subcontracts, teaming arrangements, and other agreements calling for performance of work which is subject to the organizational conflict of interest restrictions identified in this clause, unless excused in writing by the contracting officer.

(End of clause)

Section J - List of Attachments

DOCUMENT	PGS	DATE	TITLE
ATTACHMENT 1			PERFORMANCE STATEMENT OF WORK (PWS)
ATTACHMENT 2			CONTRACT DATA REQUIREMENTS LIST (CDRL)
ATTACHMENT 3			DD FORM 254
ATTACHMENT 4			DD FORM 254 CONTINUATION SHEET
ATTACHMENT 5			PRICING MATRIX (SPREADSHEET)
ATTACHMENT 6			SMALL BUSINESS SUBCONTRACTING PLAN
ATTACHMENT 7			SDR PROCESS
ATTACHMENT 8			SPECIFICATIONS AND STANDARDS
ATTACHMENT 9			WAGE RATE DETERMINATION

Section K - Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.204-24	Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment.	Nov 2021		
52.204-26	Covered Telecommunications Equipment or Services-Representation.	Oct 2020		
52.209-7	Information Regarding Responsibility Matters.	Oct 2018		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.204-7008	Compliance with Safeguarding Covered Defense Information Controls.	Oct 2016		
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation.	May 2021		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (Alternate I)	(May 2024)	Alternate I	(Feb 2024)
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Alternate I (FEB 2024). As prescribed in 12.301 (b)(2), add the following paragraph (c)(12) to the basic provision:

(12) (Complete if the offeror has represented itself as disadvantaged in paragraph (c)(5) of this provision.)

- ☐ Black American.
- ☐ Hispanic American.
- ☐ Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).
- ☐ Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).
- ☐ Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).
- ☐ Individual/concern, other than one of the preceding.

52.212-3	Offeror Representations and Certifications-Commercial Products and Commercial Services. (DEVIATION 2025-O0003 and 2025-O0004)	(May 2024)	Deviation 2025-O0004	(Mar 2025)
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OFFEROR REPRESENTATIONS AND CERTIFICATIONS-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-O0003 AND 2025-O0004)

(a) *Definitions.* As used in this provision-

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service-

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily;

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation, means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except-

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;
- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate-

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended."Sensitive technology"-

Sensitive technology-

- (1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically-
 - (i) To restrict the free flow of unbiased information in Iran; or
 - (ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and
- (2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern-

- (1) (i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and
- (ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or
- (2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that-

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned-

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women

Women-owned small business concern means a small business concern-

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b) (1) *Annual Representations and Certifications*. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212-3, Offeror Representations and Certifications-Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs ____.

[Offeror to identify the applicable paragraphs at (c) through (v) of this provision that the offeror has completed for the purposes of this solicitation only, if any.

These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted electronically on SAM.]

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that-

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern.* [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program.* The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(5) *Small disadvantaged business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is, ☐ is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

Note to paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [*Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents that it ☐ is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price: _____

(11) *HUBZone small business concern.* [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents, as part of its offer, that-

(i) It ☐ is, ☐ is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) [Reserved]

(e) *Certification Regarding Payments to Influence Federal Transactions (31 http://uscode.house.gov/ U.S.C. 1352).* (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American-Supplies, is included in this solicitation.) (1) (i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(2) Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(3) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g) (1) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate.* (Applies only if the clause at FAR 52.225-3, Buy American-Free Trade Agreements-Israeli Trade Act, is included in this solicitation.)

(i) (A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or *Israeli End Products*:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act." The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

Other Foreign End Products:

Line Item No.	Country of Origin	Exceeds 55% domestic content (yes/no)

_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. _____

[List as necessary]

(v) The Government will evaluate *offers* in accordance with the policies and procedures of FAR part 25.

(2) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate II.* If Alternate II to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Israeli End Products:

Line Item No.

[List as necessary]

(3) *Buy American-Free Trade Agreements-Israeli Trade Act Certificate, Alternate III.* If Alternate III to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms "Korean end product", "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Korean End Products or Israeli End Products:

Line Item No.	Country of Origin
_____	_____

_____	_____
_____	_____

[List as necessary]

(4) *Trade Agreements Certificate.* (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements."

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line Item No.	Country of Origin
_____	_____
_____	_____
_____	_____

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters (Executive Order 12689).* (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals-

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) ☐ Have, ☐ have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.* (A) The taxpayer has received a statutory notice of deficiency, under I.R.C. §6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. §6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. §6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. §362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).* [The Contracting Officer must list in paragraph (i)(1) any end products being acquired under this solicitation that are included in the List of Products Requiring Contractor Certification as to Forced or Indentured Child Labor, unless excluded at 22.1503(b).]

(1) *Listed end products.*

Listed End Product	Listed Countries of Origin
—	—
—	—

(2) *Certification.* [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]

(i) ☐

(ii) ☐

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly-

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) [The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]

(1) ☐ 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that-

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

(2) ☐ 22.1003-4(d)(1). The offeror ☐ does ☐ does not certify that-

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies-

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to the SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: ____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization*.

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR1.6049-4;

☐ Other ____.

(5) *Common parent*.

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name ____.

TIN ____.

(m) *Restricted business operations in Sudan*. By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations*. (1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation*. The Offeror represents that-

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran. (1) The offeror shall e-mail questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and Certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror-

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703-2(a)(2) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if-

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212-3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it ☐ has or ☐ does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates "has" in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a "doing business as" name)

Is the immediate owner owned or controlled by another entity: ☐ Yes or ☐ No.

(3) If the Offeror indicates "yes" in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a "doing business as" name)

(q) *Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.*

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that-

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that-

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) *Predecessor of Offeror.* (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated "is" in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name:_____.

(Do not use a "doing business as" name).

(s) [Reserved]

(t) [Reserved]

(u) (1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) *Representation.* By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (*e.g.*, agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services-Representation.* Section 889(a)(1)(A) and section 889 (a)(1)(B) of Public Law 115-232.

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(2) The Offeror represents that-

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.201-1	Acquisition 360: Voluntary Survey.	Sep 2023		
52.204-7	System for Award Management.	Nov 2024		
52.204-16	Commercial and Government Entity Code Reporting.	Aug 2020		
52.212-1	Instructions to Offerors-Commercial Products and Commercial Services.	Sep 2023		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements.	Nov 2023		
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.233-2 Service of Protest. (Sep 2006)

SERVICE OF PROTEST (SEPT 2006)

(a) Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from the Air Force Security and Cooperation Directorate 1940 Allbrook Dr, Rm 113, Wright-Patterson AFB, OH 45433 _____. [Contracting Officer designate the official or location where a protest may be served on the Contracting Officer.]

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.215-7008 Only One Offer. (Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable _____. [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Section M - Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services.

(Nov 2021)

EVALUATION-COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)

(a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

TechnicalPast PerformancePrice[Contracting Officer shall insert the significant evaluation factors, such as (i) technical capability of the item offered to meet the Government requirement; (ii) price; (iii) past performance (see FAR 15.304); and include them in the relative order of importance of the evaluation factors, such as in descending order of importance.]

Technical and past performance, when combined, are significantly more important[Contracting Officer state, in accordance with FAR 15.304, the relative importance of all other evaluation factors, when combined, when compared to price.]

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)